

21PSCV00778 21PSCV00778

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-06-23

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Case Number: 21PSCV00778 Hearing Date: June 23, 2026 Dept: O

Tentative Ruling

MOTION TO SET

ASIDE DEFAULT, PER CCP § 473.5 & CIV 1788.61 is CONTINUED to Monday,

August 24, 2026 at 10 AM for Defendant to serve Plaintiff with the

instant motion at the correct address.

Background

This is a

breach of contract case wherein the plaintiff alleges there is an unpaid sum of

\$50,000 on the defendant's account.

On September

24, 2021, Plaintiff Persolve Legal Group, LLP (the successor in interest to the

original lender, Compass bank) filed suit against Defendant James Stewart for:

1. Breach

of Contract

2. Money

Lent

3. Account

Stated

On May 30,

2023, default was entered.

On July 18,

2023, default judgment was entered in the sum of \$72,591.33 (comprised in part

of \$50,000 in damages plus \$21,008.21 in interest at an annual rate of 8%, as

alleged in the complaint).

On May 5,

2026, the instant motion was filed.

Discussion

As set forth in the

motion, Defendant only became aware of this proceeding in March 2026 when he

was attempting to conduct a refinance of his current residential mortgage and he was

notified that an Abstract of Judgment for this matter had been recorded with the Los

Angeles County Recorder's Office. (Motion p. 3.) More specifically, Defendant

argues that during the relevant time period (2021 and 2022) Defendant did not

reside at any of the listed addresses where service was allegedly attempted. As

for service of process via publication, Defendant argues “[s]ince service of process was affected by publication, Defendant did not receive actual notice of the action in time to defend, and this was not caused by the defendant’s avoidance of service or inexcusable neglect.” (Motion p. 5:21-24.) Based thereon, Defendant brings forth the motion pursuant to Code

Civ. Proc. § 473.5(a) and Civil Code section 1788.61.

CCP section 473.5

governs motions when “service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment” and said “motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years

after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been

entered.”

But

Civil Code section 1788.61 provides a different timeline in cases involving a debt buyer. “Notwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of motion and motion to set aside the default or default judgment and for leave to defend the

action... (2) Except as provided in paragraph (3), the notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (A) Six years after entry of the default or default judgment against the person. (B) One hundred eighty days of the first actual notice of the action."

Here, the court will not reach the merits of the motion as it appears Defendant has not served Plaintiff at the proper address. Though the complaint was filed by Persolve Legal Group, LLP with an address at 9301 Corbin Avenue in the city of Northridge and POS attached to this motion bears the same address, on June 15, 2026, Plaintiff filed a 'NOTICE OF CHANGE OF FIRM NAME AND ADDRESS' indicating that PERSOLVE LEGAL GROUP, LLP has changed its firm name to HighPoint Law Offices, LLC. The mailing address of the firm is now: HighPoint Law Offices, LLC 13890 Bishops Dr, Suite 450 Brookfield, WI 53005.

Accordingly, absent notice of the instant motion, the court continues the hearing to provide said required notice.

Conclusion

Based thereon, the hearing is continued to Monday,

August 24, 2026